

October 14, 2005



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 8307
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of packages described as non-pyrotechnic smoke generators containing certain Class 8 materials that may have a subsidiary poison inhalation hazard and also may contain nitrogen, compressed gas. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.21(e), § 173.227 and § 175.3, except as specified herein.
5. BASIS: This special permit is based on the application of U.S. Department of Defense (DOD) dated November 26, 2003, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Titanium tetrachloride	8	UN1838	II Zone B
<i>Ammonia solutions, relative density between 0.880 and 0.957 at 15 degrees C in water, with more than 10 percent but not more than 35 percent ammonia or Ammonium hydroxide</i>	8	UN2672	III
Nitrogen, compressed	2.2	UN1066	N/A

7. SAFETY CONTROL MEASURES:

a. Packagings prescribed for the non-pyrotechnic smoke generator are non-DOT specification containers complying with the following:

(1) Smoke Generator Drawing R45287; T-63842; S33375 or S36159 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA) consisting of 1 DOT 3A 1800 cylinder for the ammonium hydroxide, 1 FM (FM = chemical agent symbol for titanium tetrachloride) tank or DOT 3A 1800 cylinder for the titanium tetrachloride, an empty DOT 3A 1800 cylinder (for nitrogen gas) which contains a small explosive actuating valve. The FM tank complies with the ASME Code with a design pressure of 300 psi. Maximum amount of lading is 1 liter of titanium tetrachloride and, 3 liters of ammonium hydroxide. Explosives content of the actuating valve may not be more than 200 milligrams; and

(2) Smoke Generator Drawing T63807 on file with the OHMEA consisting of 1 DOT 3A 1800 cylinder for titanium tetrachloride, 1 DOT 3A 1800 cylinder for ammonium hydroxide, and 1 DOT 3AA 3000 cylinder for nitrogen which contains a small explosive actuating valve.

October 14, 2005

Maximum amount of lading is 285 milliliter for titanium tetrachloride, 855 milliliter for ammonium hydroxide, and 15 cubic inch for nitrogen. Explosive content of the actuating valve may not be more than 45 milligrams. The high pressure tubing from the Eager Pak to the pressure regulator must be disconnected and capped during transportation.

b. Each cylinder is secured within a metal casing which is overpacked in a strong wooden box.

c. Optionally any interior container or packaging may be overpacked in a heavy plastic bag, heat sealed and capable of retaining vapors or liquid in the event of leakage of the inner container or packaging.

d. Cylinders equipped with an explosive actuating valve as described above are determined to be non-explosive.

8. SPECIAL PROVISIONS:

a. When reused, the DOT specification cylinders must be retested and reinspected as prescribed in § 180.205 before each refill, the FM container must be retested once every 2 years and the explosive valve replaced.

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Packagings permanently marked 'DOT-E 8307', prior to October 1, 2006 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2006 must be marked 'DOT-SP 8307'.

October 14, 2005

e. Shipping papers displaying 'DOT-E 8307' may continue to be used until October 1, 2906, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Taylor", is written over a faint, circular official stamp.

for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln